EMON OVERRUNS
Pasay City, Metro Manila
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PORTAL TERMS OF USE

SUMMARY

IMPORTANT. EVERYTHING IN THIS PORTAL IS **CONFIDENTIAL** PROPERTY OF EMON OVERRUNS. YOU MUST **NOT** LEAK, SHARE, COPY, PHOTOGRAPH, SCREENSHOT, FORWARD OR SELL ANY DATA FROM IT. DOING SO IS A **CRIME PUNISHABLE BY LAW** IN THE PHILIPPINES (DATA PRIVACY ACT OF 2012, CYBERCRIME PREVENTION ACT OF 2012, REVISED PENAL CODE) AND IN OTHER COUNTRIES, WITH IMPRISONMENT AND FINES, BESIDES DISMISSAL AND DAMAGES. YOUR APPROVED SIGNATURES ARE YOUR **ELECTRONIC SIGNATURE** AND ARE AS VALID AS YOUR HANDWRITTEN SIGNATURE ON EVERY DOCUMENT MADE IN THIS PORTAL. EVERY RECORD MADE IN THE PORTAL — INVOICES, PAYMENTS, CHARGES AND ALL OTHER DATA — IS **VALID AS AN ORIGINAL**; IF YOU SEE ANY MISTAKE, **CONTACT THE OFFICE IMMEDIATELY**; FAILURE TO PAY ALLOWS LEGAL ACTION. ALL INFORMATION YOU GIVE MUST BE **TRUE**, AND AN EMPLOYEE IS **RESPONSIBLE FOR EVERY RECORD THEY SUBMIT**.

1. ABOUT THE PORTAL AND THESE TERMS

THE EMON OVERRUNS E-PORTAL (THE "PORTAL"), ITS WEBSITE, WINDOWS AND ANDROID APPS ARE OWNED AND RUN BY **EMON OVERRUNS**, PASAY CITY, METRO MANILA, PHILIPPINES, MANAGED BY **EMON HASAN**, MANAGING DIRECTOR, WHO IS THE PERSONAL INFORMATION CONTROLLER AND DATA PROTECTION OFFICER (EMONOVERRUNS@GMAIL.COM).

THIS **PORTAL TERMS OF USE** BINDS EVERY PERSON WHO SIGNS IN TO THE PORTAL: THE MANAGING DIRECTOR, EMPLOYEES, STAFF, APPLICANTS AND ANY OTHER USER ("YOU"). BY TICKING **"I HAVE READ ALL AND I AGREE"** AND PRESSING **SUBMIT** YOU ACCEPT ALL OF IT. IF YOU DO NOT AGREE, SIGN OUT AND DO NOT USE THE PORTAL.

2. TERMS OF USE

1. USE THE PORTAL ONLY FOR YOUR WORK OR BUSINESS WITH EMON OVERRUNS AND ONLY IN THE MENUS GIVEN TO YOU.
2. YOUR LOGIN, PASSWORD AND ID CARD ARE PERSONAL. NEVER SHARE THEM OR LET ANOTHER PERSON USE THEM. EVERYTHING DONE WITH YOUR LOGIN IS YOUR ACT.
3. EVERY ACTION IS RECORDED ON THE SERVER: WHO, WHAT, DATE AND TIME, DEVICE AND INTERNET (IP) ADDRESS. SCREENS CARRY YOUR NAME AND EVERY PRINT CARRIES "PRINTED BY" WITH YOUR NAME. PRINTING AND DOWNLOADING OF PROTECTED RECORDS NEEDS THE APPROVAL OF EMON HASAN.
4. IT IS FORBIDDEN TO: GET INTO RECORDS OR MENUS NOT GIVEN TO YOU; TRY TO BREAK, TEST OR GO AROUND THE SECURITY; COPY OR EXPORT DATA IN BULK; TAKE PHOTOS OR SCREENSHOTS OF SCREENS; SEND DATA TO PERSONAL EMAIL, CHAT OR SOCIAL MEDIA; OR USE ANY DATA FOR YOURSELF, ANOTHER BUSINESS OR A COMPETITOR.
5. EMON OVERRUNS MAY STOP OR REMOVE ANY LOGIN AT ANY TIME TO PROTECT THE BUSINESS AND ITS CUSTOMERS.

3. DATA PRIVACY NOTICE AND CONSENT (REPUBLIC ACT NO. 10173)

WHAT WE COLLECT: NAMES, ADDRESSES, PHONE NUMBERS, EMAIL, BIRTH DATE, PHOTOS, IDS AND DOCUMENTS, SPECIMEN AND APPROVED SIGNATURES, EMPLOYMENT AND PAYROLL DATA, CUSTOMER ACCOUNTS AND MONEY RECORDS (ORDERS, INVOICES, PAYMENTS, BALANCES, STATEMENTS), DELIVERY RECORDS AND PHOTOS, LOCATION CHECKS, AND FOR EVERY LOGIN: DEVICE, BROWSER, IP ADDRESS AND THE TIME OF EACH ACTION.

WHY: TO RUN THE BUSINESS (CUSTOMER ACCOUNTS, ORDERS, DELIVERY, BILLING AND COLLECTION, PAYROLL AND HUMAN RESOURCES), TO CHECK AND VERIFY DOCUMENTS, TO KEEP THE PORTAL SECURE, TO PREVENT FRAUD, AND TO FOLLOW THE LAW (FOR EXAMPLE TAX AND LABOR RULES).

LEGAL BASIS: YOUR CONSENT, THE CONTRACT WITH YOU, LEGAL OBLIGATIONS AND THE LEGITIMATE INTERESTS OF EMON OVERRUNS (SECTIONS 12 AND 13 OF THE DATA PRIVACY ACT OF 2012).

WHERE AND HOW LONG: ON SECURE CLOUD SERVERS IN SINGAPORE WITH ENCRYPTED CONNECTIONS AND ACCESS ONLY BY MENU. EMON OVERRUNS STAYS RESPONSIBLE FOR THIS TRANSFER (SECTION 21). RECORDS ARE KEPT WHILE NEEDED FOR THESE PURPOSES AND AS LONG AS THE LAW REQUIRES (FOR EXAMPLE BOOKS OF ACCOUNTS FOR THE BUREAU OF INTERNAL REVENUE), THEN DELETED OR MADE ANONYMOUS.

YOUR RIGHTS: TO BE INFORMED, TO ACCESS, TO OBJECT, TO CORRECT, TO ERASURE OR BLOCKING, TO DATA PORTABILITY, TO DAMAGES, AND TO COMPLAIN TO THE NATIONAL PRIVACY COMMISSION (PRIVACY.GOV.PH). WRITE TO EMON HASAN AT EMONOVERRUNS@GMAIL.COM. SOME RECORDS CANNOT BE ERASED WHILE THE LAW REQUIRES THEM TO BE KEPT.

OTHER COUNTRIES: WHERE A USER, CUSTOMER OR RECORD IS UNDER THE LAWS OF ANOTHER COUNTRY, THE STRICTER RULE APPLIES, INCLUDING WHERE APPLICABLE THE EU GENERAL DATA PROTECTION REGULATION (EU) 2016/679, THE UK GDPR, THE SINGAPORE PERSONAL DATA PROTECTION ACT 2012, THE DATA PROTECTION AND CYBER SECURITY LAWS OF BANGLADESH, AND THE PRIVACY LAWS OF THE UNITED STATES AND OF ANY OTHER COUNTRY CONCERNED.

4. CONFIDENTIALITY AND NON-DISCLOSURE

1. ALL INFORMATION IN THE PORTAL IS CONFIDENTIAL AND BELONGS TO EMON OVERRUNS: CUSTOMERS AND THEIR ACCOUNTS, BALANCES, PURCHASE HISTORY, PRICES, SUPPLIERS, STOCK, ORDERS, DELIVERIES, PAYROLL, EMPLOYEES AND EVERY DOCUMENT.
2. YOU MUST **NOT** LEAK, DISCLOSE, SHARE, COPY, PHOTOGRAPH, SCREENSHOT, RECORD, PRINT WITHOUT APPROVAL, FORWARD, SELL OR USE IT FOR ANY PURPOSE OTHER THAN YOUR WORK — DURING YOUR WORK AND **AFTER IT ENDS**, WITH NO TIME LIMIT.
3. **LEAKING OR SHARING DATA IS PUNISHABLE BY LAW**, INCLUDING: REPUBLIC ACT NO. 10173 (DATA PRIVACY ACT OF 2012), SECTIONS 25 TO 33 — UNAUTHORIZED PROCESSING, ACCESS DUE TO NEGLIGENCE, UNAUTHORIZED PURPOSES, INTENTIONAL BREACH, MALICIOUS AND UNAUTHORIZED DISCLOSURE — WITH IMPRISONMENT OF UP TO SIX (6) YEARS AND FINES OF UP TO FIVE MILLION PESOS (PHP 5,000,000) PER OFFENSE; REPUBLIC ACT NO. 10175 (CYBERCRIME PREVENTION ACT OF 2012) — ILLEGAL ACCESS, DATA INTERFERENCE AND MISUSE OF DEVICES; THE REVISED PENAL CODE, ARTICLES 290 TO 292 — DISCOVERY AND REVELATION OF SECRETS, INCLUDING INDUSTRIAL SECRETS; AND THE LAWS OF ANY OTHER COUNTRY WHERE THE ACT IS DONE OR FELT.
4. A BREACH IS ALSO A JUST CAUSE FOR DISMISSAL (LABOR CODE, ARTICLE 297: SERIOUS MISCONDUCT, FRAUD OR WILLFUL BREACH OF TRUST) AND MAKES YOU LIABLE FOR ALL DAMAGES, COSTS AND ATTORNEY'S FEES UNDER THE CIVIL CODE.
5. REPORT AT ONCE TO EMON HASAN ANY LOSS, LEAK, WRONG ACCESS OR LOST PHONE OR ID CARD (WITHIN 24 HOURS). WHEN YOUR WORK ENDS, RETURN OR DELETE ALL COMPANY DATA.

5. ELECTRONIC SIGNATURE CONSENT

1. UNDER REPUBLIC ACT NO. 8792 (ELECTRONIC COMMERCE ACT OF 2000, SECTIONS 7 AND 8) AND THE RULES ON ELECTRONIC EVIDENCE (A.M. NO. 01-7-01-SC), AN ELECTRONIC SIGNATURE HAS THE SAME LEGAL EFFECT AS A HANDWRITTEN SIGNATURE.
2. YOU AGREE THAT YOUR **THREE (3) SPECIMEN SIGNATURES** GIVEN ON YOUR APPLICATION OR SIGNATURE VERIFICATION FORM, AND YOUR SIGNATURE SUBMITTED AND APPROVED BY EMON HASAN IN THE PORTAL, ARE **YOUR ELECTRONIC SIGNATURE**.
3. EVERY DOCUMENT MADE, SUBMITTED OR APPROVED IN THE PORTAL THAT CARRIES YOUR SIGNATURE OR YOUR NAME AS THE PERSON WHO MADE, SUBMITTED, APPROVED, COMPLETED, RECEIVED OR PRINTED IT — ORDERS, INVOICES, RECEIPTS, VOUCHERS, DELIVERY RECORDS, GATE PASSES, PAYSLIPS, CERTIFICATES, REQUESTS, ACKNOWLEDGMENTS AND ALL OTHERS — IS **VALID AND BINDING LIKE A DOCUMENT SIGNED BY YOUR OWN HAND**, AND YOU WILL NOT DENY IT.
4. PRESSING SUBMIT, APPROVE, COMPLETE OR ANY SIMILAR BUTTON WITH YOUR LOGIN IS YOUR SIGNED ACT.
5. THIS CONSENT IS ALSO GIVEN UNDER THE LAWS OF OTHER COUNTRIES WHERE THEY APPLY, INCLUDING THE US ESIGN ACT AND UETA, THE EU EIDAS REGULATION (EU) NO 910/2014, THE SINGAPORE ELECTRONIC TRANSACTIONS ACT AND THE BANGLADESH INFORMATION AND COMMUNICATION TECHNOLOGY ACT 2006.
6. YOU MAY WITHDRAW THIS CONSENT IN WRITING TO EMON HASAN; YOU THEN STOP USING THE PORTAL. DOCUMENTS SIGNED BEFORE STAY VALID.

6. RECORDS MADE IN THE PORTAL, CHARGES AND PAYMENT

1. EVERY RECORD THAT EMON OVERRUNS OR EMON HASAN MAKES, ADDS OR APPROVES IN THE PORTAL — CUSTOMER ACCOUNTS, ORDERS, DELIVERY RECORDS, INVOICES, PAYMENTS RECEIVED, RECEIPTS, CREDIT MEMOS AND RETURNS, ADDITIONAL CHARGES, SETTLEMENT ADJUSTMENTS, STATEMENTS OF ACCOUNT, BALANCE CERTIFICATES, GATE PASSES, E-BILLS, VOUCHERS, PAYROLL AND EVERY OTHER RECORD OR SYSTEM DATA — IS AN **OFFICIAL BUSINESS RECORD** OF EMON OVERRUNS, MADE IN THE REGULAR COURSE OF BUSINESS, AND IS **VALID AND BINDING AS AN ORIGINAL DOCUMENT** (REPUBLIC ACT NO. 8792 AND THE RULES ON ELECTRONIC EVIDENCE), ALSO WHEN IT IS PRINTED, DOWNLOADED, SENT BY EMAIL OR CHECKED BY ITS QR CODE OR BARCODE.
2. YOU AGREE THAT THE AMOUNTS, CHARGES, QUANTITIES, DATES AND BALANCES IN THESE RECORDS ARE **TRUE AND CORRECT**, AND THAT THE BALANCE SHOWN ON YOUR ACCOUNT AND STATEMENT OF ACCOUNT IS THE AMOUNT YOU OWE.
3. **IF THERE IS ANY MISTAKE OR ISSUE** IN A RECORD, YOU MUST **CONTACT THE OFFICE OF EMON OVERRUNS IMMEDIATELY** (PASAY CITY, METRO MANILA · EMONOVERRUNS@GMAIL.COM) SO IT CAN BE CHECKED AND FIXED. A RECORD NOT QUESTIONED IN WRITING WITHIN SEVEN (7) DAYS FROM THE DAY YOU RECEIVE OR CAN SEE IT IS TAKEN AS CORRECT AND ACCEPTED BY YOU.
4. EVERY INVOICE AND CHARGE MUST BE PAID IN FULL ON OR BEFORE ITS DUE DATE. **IF YOU FAIL TO PAY**, EMON OVERRUNS MAY, WITHOUT FURTHER NOTICE: HOLD OR STOP DELIVERIES (GATE PASS FREEZE ACCOUNT), SUSPEND OR CLOSE THE ACCOUNT, ADD THE CHARGES AND ADJUSTMENTS ALLOWED BY THE AGREEMENT, SEND COLLECTION LETTERS, REFER THE ACCOUNT TO COLLECTION, AND **TAKE LEGAL ACTION AGAINST YOU** — INCLUDING A CIVIL CASE OR SMALL CLAIMS CASE FOR THE AMOUNT DUE, WITH INTEREST, DAMAGES, COSTS OF COLLECTION AND ATTORNEY'S FEES — AND FILE A CRIMINAL COMPLAINT WHERE THE LAW ALLOWS (FOR EXAMPLE UNDER BATAS PAMBANSA BLG. 22 FOR A BOUNCED CHECK, OR FOR ESTAFA UNDER THE REVISED PENAL CODE).

5. THESE RECORDS MAY BE USED AS EVIDENCE BEFORE ANY BARANGAY, OFFICE, AGENCY OR COURT IN THE PHILIPPINES OR IN ANOTHER COUNTRY.

7. THE INFORMATION YOU GIVE IS TRUE

1. YOU DECLARE THAT **ALL INFORMATION AND DOCUMENTS YOU GIVE** TO EMON OVERRUNS — IN YOUR APPLICATION, IDS, ADDRESS, PHONE, BUSINESS DETAILS, PHOTOS, SIGNATURES, ORDERS, PAYMENTS, RECEIPTS AND EVERY MESSAGE — ARE **TRUE, CORRECT AND COMPLETE**, AND ARE YOURS OR GIVEN WITH THE OWNER'S PERMISSION.
2. YOU WILL TELL THE OFFICE AT ONCE WHEN ANY OF IT CHANGES (ADDRESS, PHONE, BUSINESS, AUTHORIZED PERSONS).
3. GIVING FALSE, MISLEADING OR INCOMPLETE INFORMATION IS A GROUND TO REFUSE, SUSPEND OR CLOSE YOUR ACCOUNT AND TO STOP DELIVERIES, AND MAY BE PUNISHABLE BY LAW (FOR EXAMPLE FALSIFICATION OR ESTAFA UNDER THE REVISED PENAL CODE). YOU ARE RESPONSIBLE FOR ANY LOSS IT CAUSES.

8. RECORD OF YOUR ACCEPTANCE

WHEN YOU PRESS SUBMIT, THE SERVER KEEPS FOR GOOD: YOUR NAME, EMAIL, ROLE, THE DATE AND TIME, YOUR DEVICE AND BROWSER, YOUR IP ADDRESS, THE VERSION OF THESE TERMS AND THE FINGERPRINT (SHA-256) OF THEIR EXACT TEXT, WITH AN ACCEPTANCE NUMBER (LT-…). NOBODY CAN CHANGE OR DELETE IT. IT IS PROOF OF YOUR CONSENT AND MAY BE USED BY EMON OVERRUNS BEFORE ANY OFFICE OR COURT. YOU CAN SEE AND PRINT YOUR ACCEPTANCE ANY TIME IN THE MENU **LEGAL TERMS**.

9. CHANGES AND GOVERNING LAW

WHEN THESE TERMS CHANGE, A NEW VERSION IS SHOWN AND MUST BE ACCEPTED AGAIN. THESE TERMS ARE GOVERNED BY THE LAWS OF THE REPUBLIC OF THE PHILIPPINES; THE COURTS OF PASAY CITY, METRO MANILA, HAVE JURISDICTION. IF ONE PART IS HELD INVALID, THE REST STAYS IN FORCE.